

22STCV38589 22STCV38589

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-08-05

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Case Number: 22STCV38589 Hearing Date: August 5, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

22STCV38589

NEXGEN

AIR CONDITIONING AND HEATING, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY, vs

ZAKI S. MANSOUR

August

5, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF/CROSS-DEFENDANT NEXGEN AIR CONDITIONING AND HEATING, LLC'S MOTION FOR ORDER DEEMING REQUESTS FOR ADMISSION ADMITTED AND FOR SANCTIONS.

RULING:

The Court grants the unopposed Motion.

The truth of each matter and the genuineness of each document specified in the Requests for Admission, Set Two (Nos. 76-114), served on April 24, 2026 upon Defendant/Cross-Complainant ZAKI S. MANSOUR, are deemed admitted and conclusively established for all purposes in this action.

Defendant/Cross-Complainant ZAKI S. MANSOUR is ordered to pay to Plaintiff/Cross-Defendant NEXGEN AIR CONDITIONING AND HEATING, LLC the sum of \$3,840.00 as discovery sanctions.

Plaintiff to give notice.

ANALYSIS:

By the Motion filed June 17, 2026, Plaintiff/Cross-Defendant moves for an Order that (1) the truth of each matter specified and the genuineness of each document specified in the Requests for Admission, Set Two served on Mr. Mansour on April 24, 2026 be deemed admitted and conclusively established for all purposes in this action; and (2) Mr. Mansour pay to NexGen the sum of \$3,840.

On March 2, 2026, the Court filed the Order granting the Motion to be Relieved as Counsel of Record for ZAKI S. MANSOUR.

A motion to deem admitted requests for admissions lies based upon a showing of failure to respond timely. (Code Civ. Proc., § 2033.280, subd. (b); Demyer v. Costa Mesa Mobile Home Estates (1995) 36 Cal.App.4th 393, 395, disapproved on other grounds by Wilcox v. Birtwhistle (1999) 21 Cal.4th 973, 983.) Requests for admissions must be deemed admitted where no responses in substantial compliance were served before the hearing. (Code Civ. Proc., § 2033.280, subd. (c).) As to motions to deem matters admitted, no meet and confer is required. (Demyer v. Costa Mesa Mobile Home Estates (1995) 36 Cal.App.4th 393, 395, overruled on other

grounds by *Wilcox v. Birtwhistle*
(1999) 21 Cal.4th 973, 983.)

Where

a party never responded to requests for admissions, and never filed a motion for relief based on mistake, inadvertence or excusable neglect (Code Civ. Proc., § 2033.280, subd. (a)(2)), an order deeming admitted the requests is conclusive, and may not be contested with evidence in dispute. (*People v. \$2,709 United States Currency* (2014) 231 Cal.App.4th 1278, 1285–1286.)

“Under Code of Civil

Procedure section 2033.280, it is mandatory that the court impose a monetary sanction on the party or attorney whose failure to serve a timely response to a request for admission necessitates a motion to compel responses....” (*Stover v. Bruntz* (2017) 12 Cal.App.5th 19, 31–32. Accord, *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 635.)

There is no opposition

filed as to this matter to show substantial justification for failing to serve discovery responses.

Therefore, the Court

grants the Motion, as prayed.